

GOVERNMENT OF ANDHRA PRADESH

ABSTRACT

G.A. (V&E) Department - Enquiries conducted by the vigilance & Enforcement Department - Single Directive - ISSUED,

GENERAL ADMINISTRATION (V&E-A) DEPARTMENT

G.O.Ms.No.504.

Dated: 25/11/97,

Read the following:

G.O.Ms.No.269, Genl. Admn. (SC.D) Department dated:11.01.1985.

ORDER:

Instructions have been issued by the Government from time to time to the administrative Departments of Secretariat, Heads of Departments, District Collectors, and other Officers, to extend co-operation and assistance to the Officers of Vigilance & Enforcement Department, G.A.D. during the course of their enquiries by making over records and material information required by them. Of late, the Government have been entrusting the Department of V & E with a variety of enquiries and the role of this organisation has now become quite comprehensive. It is, therefore, necessary to consolidate all the instructions issued so far in the form of a single directive to all the Government Departments/Government Undertakings/Quasi Government organisations clearly defining their responsibilities in relation in relation to V&E Department.

II. ROLE OF THE VIGILANCE & ENFORCEMENT DEPARTMENT:

The Vigilance & Enforcement Departmentian agency which was constituted in G.O.Ms.No.269, G.A. (SC.D) Department, dt.11.6.1985 by the Government to conduct enquiries/investigations into specific allegations affecting public interest and to take effective measures through its own machinery and with help of other vigilance bodies, organisations and departments of the Government to achieve the following objectives:

- 1) Prevention of leakage of revenues due to Government;
- 2) Detection of misuse or wastage of Government funds, resources, materials and properties;
- 3) Prevention of loss of State's wealth and natural resources;
- 4) To prevent losses/wastage&graft in public Sector undertaking and Government Companies;
- 5) To advise the Government regarding the Changes needed in laws and rules with a view to simplifying and streamlining the procedures;
- 6) To refer any complaint/allegation to the Anti-Corruption Bureau for investigation/enquiry; and
- 7) To advise the Government on any matters that may be referred to it from time to time.

2. In other words, it is expected to carry out Vigilance functions where Government spending is involved and enforcement functions in respect of the revenues due to Government.

III. ORGANISATION:

The Vigilance & Enforcement Department is part of G.A.D. The Department is headed by an Officer designated as Director General (Vigilance & Enforcement), who is Ex-Officio Prl. Secretary to Government He is assisted by Director (Vigilance & Enforcement), who is of the rank of Inspector General of Police.

3. Keeping in view the various objectives set for the V&E Department, the Head Office of V&E was reconstituted into the following four wings vide Office Order No.283,G.A.(V&E) Department dated. 3.8.35.

1. Revenue Wing;
2. Engineering Wing;
3. Development Works Wing; and
4. Natural Resources Wing.

4. Each of these wings is headed by a Joint Addl. Director.

5. The Vigilance & Enforcement Department has 12 Regional Offices headed by Regional Vigilance & Enforcement Officers with headquarters at and jurisdiction consisting of :

Hyderabad (Hyderabad City),
Secunderabad (Secunderabad and R.R. Districts),
Warangal (Warangal, Khammam and Nalgonda Districts),
Nizamabad (Nizamabad and Medak Districts),
Karimnagar (Karimnagar and Adilabad Districts),
Visakhapatnam (Visakhapatnam, Vizianagaram and Srikakulam Districts),
Rajahmundry (East and West Godavari Districts),
Vijayawada (Krishna District),
Guntur (Guntur District),
Nellore (Nellore and Prakasam District),
Tirupathi (Chittoor and Cuddapah Districts),
Kurnool (Kurnool and Ananthapur Districts),

6. The officers working in V&E Department both at Headquarters and in field Units are not to be transferred without prior consultation with and concurrence of the D.G.(V&E), GAD, to avoid dislocation of work. The V&E Department is a mixed set up with Officers from all the three All-India Services and different departments of the Government working on deputation. By virtue of the responsibilities of the department it is necessary that Officers of proven integrity are spared for service in the Department. The Heads of Depts. should extend all co-operation to the Director General(V&E) in this regard.

IV. JURISDICTION

The Vigilance & Enforcement Department has jurisdiction and powers throughout the State of Andhra Pradesh in respect of matters to which the executive authority of the State extends. The jurisdiction of the V&E Department extends to all Departments of the Government, Stat. Public. Sector Undertakings, State Government companies, all local bodies like municipalities and Zila Parishads and Quasi-Government bodies and organisations receiving the aid or assistance of the State Government in any form.

V. FACILITIES & CO-OPERATION TO BE EXTENDED TO THE VIGILANCE & ENFORCEMENT DEPARTMENT

Full Co-operation and facilities should be extended by the administrative authorities and the individual public servants to the Officers of V&E Department during the course of their enquiries. The following instructions are issued in this regard.

a) MAKING OVER RECORDS:

The Secretaries to the Government/Heads of Departments/Officers and Chief Executives of Government Undertaking shall ensure that full Co-operation is extended to the officers of V&E Department and the records required by them are made over for scrutiny. Enquiries are often held up on account of delays in making over the records

required by V&E Officials. In asking for the original documents, particularly those forming part of the current files, the V&E Officer will however, exercise due discretion so as to ensure that the day-to-day work in the Department concerned is not affected. On their part, the departmental authorities should ensure that the documents requisitioned by V&E Department should be made available to them without any delay. Where necessary, the departments may keep attested or photostat copies of the records for meeting the urgent departmental needs, without prejudice to the enquiry/investigation being carried by the V&E Department.

2. The records required by the V&E Department should be made available to them as early as possible, in any case positively within a week from the date of receipt of the requisition. If, for any special reasons, it is not possible to make over the records within a week, the matter should be brought to the notice of the Director General(V&E)/Director(V&E) Regional Vigilance & Enforcement officer concerned, giving in writing the reasons for not making over the records with the maintained.

b) Witness.

Whenever the V&E Officers desire the presence of an official for examining him in commencing any investigation/enquiry, the administrative authority will direct the official concerned to request the V&E Department at the appointed date, time place. If for any reason, it is not possible for him to appear on the specified date and time, a request may be made in writing by him for postponement. Such request should be given due consideration by the Officers of V&E Department.

VI. TRANSFER OF AN OFFICER AT THE REQUEST OF THE V&E DEPARTMENT:

1. In cases where the V&E Department are enquiring into serious charges and makes a request for the transfer of a public servant, such requests should be complied with. The V&E Department will recommend transfer only when it is absolutely necessary for the purpose of enquiry and such requests will be made by an Officer not lower in rank than Regional Vigilance & Enforcement Officer after obtaining the concurrence of the Director General (V&E)/Director(V&E).

2. Where the Department concerned has some administrative difficulty in complying with the request, the matter should be settled by discussion.

3. While it is recognised that the discretion of the Administrative Department should not be taken away in matters of this kind, it is equally necessary that there should not be impediments to proper investigation of the allegations of corruption, irregularities and misutilisation of funds etc. These considerations should be borne in mind by all concerned.

VII) ASSISTANCE TO THE V&E DEPARTMENT BY TECHNICAL OFFICERS.

In respect of enquiries of technical nature, the V&E Department may need the assistance of technical Officers like engineers, doctors, accountants etc. for elucidation of technical details of cases under investigation. Government Departments, Municipal Bodies, Local Bodies and Government undertakings etc., should render full co-operation and assistance on receipt of such requests from the V&E Department. The concerned Department should spare the services of such Officers; as and when the services of specified officers are requisitioned by the V&E Department for conducting enquiries of sensitive nature. The samples/specimens collected by the V&E Department

for conducting enquiries of sensitive nature. The samples/ specimens collected by the V&E Department during Recourse of enquiries, when sent to Laboratories/ Institutes for analysis, the concerned should examine them at the cost of the Department concerned and send their reports on priority. The expenditure should be borne by the concerned Departments.

VIII) DISCIPLINARY ACTION:

The Vigilance & Enforcement Department may either during the course of enquiry or while recommending departmental action, suggest to the Disciplinary Authority that the Officer concerned may be transferred or suspended giving reasons for recommending such a course of action. On receipt of such a request, the matter should be carefully examined. The disciplinary authority may exercise his discretion and initiate appropriate action. The authority concerned, in the event of disagreement with the recommendations of V&E Department may refer the matter to the vigilance Commissioner for advice.

IX) PROSECUTION:

Prosecution should be the general rule in cases of bribe, corruption and in matters of criminal misconduct like causing wrongful loss to the Government or wrongful gain to person. In such cases the V&E Department will make out a report to Government or Director General, Anti Corruption Bureau suggesting that a case be registered by ACB and investigated into.

X) POWERS:

The vigilance & Enforcement Department will not normally take up any enquiry on anonymous petitions or pseudonymous petitions and on petitions containing allegations of corruption against individual Officers. Where, however, such petitions contain specific or factual allegations capable of being verified, a suo-moto enquiry may be undertaken on the specific orders of the Director General (V&E).

2. The petitions or complaints received from the vigilance commission / Lok Ayukha/Chief Minister's Office/Chief secretary addressed to the Director General (V&E) will be enquired into and report submitted.

3. Normally, the V&E Department would not entertain request from Departments to conduct enquiries on petitions received against their Officers. It for the senior Officers of the Depts. Concerned to conduct such enquiries. It is the charter of V&E Officers to act on the intelligence gathered by them. ~~By~~ In exceptional cases, very important enquiries may be entrusted to them by the departments with the approval of the Chief Secretary to Government and giving reasons why their own Officers cannot conduct such enquiries.

4. The Director General (V&E) may convene meetings with the Prl. Secretaries/Heads of Depts. or with their representatives for reviewing the follow up action taken on the reports of the Departments and on such matters which come under the purview of vigilance & Enforcement Department Besides, the Depts. Should initiate action on all the reports of V&E Department by giving them TOP PRIORITY and keep the vigilance & Enforcement Department informed of the action taken. The Director General (V&E) is authorised to call for action Taken reports (ATRs) from the departments concerned.

-: 5 :-

5. In view of the above the administrative departments in the Secretariat, Heads of Departments, District Collectors, Heads of State Government Undertakings, Officers of Municipalities and Panchayat Raj Bodies and other Quasi-Government Organisations and other field officers are requested to extend necessary co.operation to the V&E Staff/Officers and make over the required records, files or material under proper acknowledgement without causing any delay to enable early finalisation of the enquiries relating to their departments.

6. All the Departments of Secretariat are requested to issue necessary instructions to the Heads of Departments, Public Sector Undertakings, statutory bodies, Quasi-Government Organisations, etc., under their administrative control bringing the above instructions to their notice and for their effective compliance.

(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

K.Madhava Rao,
Chief Secretary to Government.

//True copy//